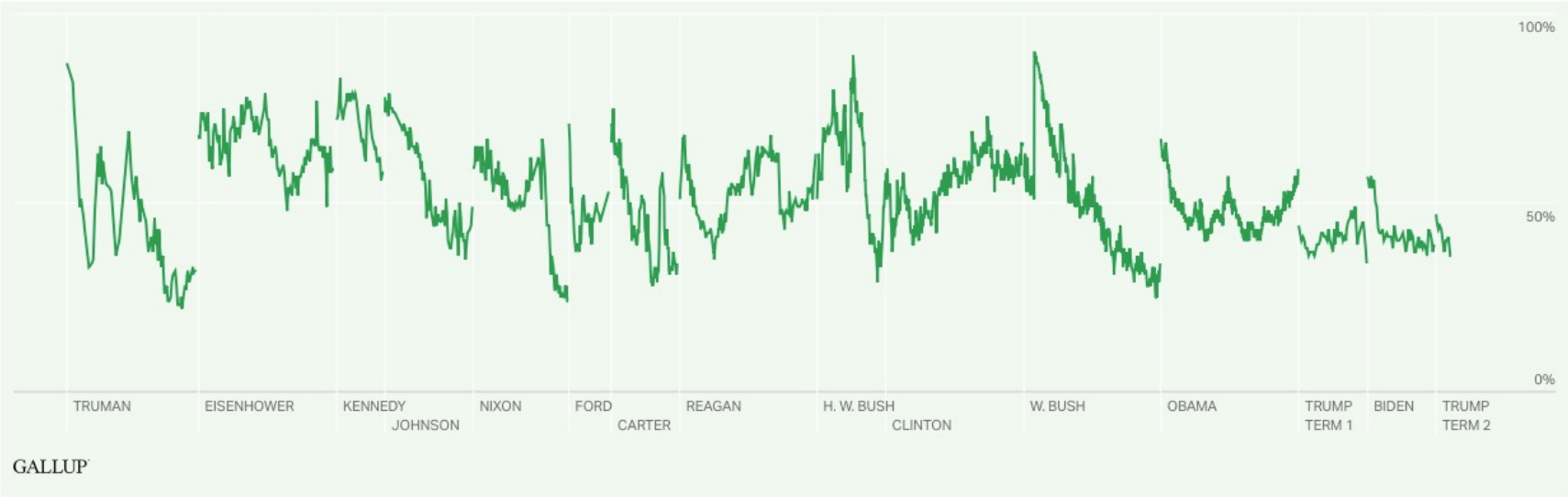
The Presidency

POLS 2311: Government of the United States

Agenda

- Presidential Powers
- The Evolution of the Presidency
- How Presidents Influence Policy
- Presidential Organization and Transition
- Presidential Elections
- Checks on Presidential Power

Presidential Approval



PRESIDENTIAL POWER

Article II Section 1

The executive Power shall be vested in a President of the United States of America

- The presidency is the most *visible* position in the U.S. government
- The Founders accepted the need to empower a relatively strong and vigorous chief executive …
  - … but they also wanted this chief executive to be restrained by checks from the other branches of the federal government, as well as by the Constitution itself
- ***The presidency is about the execution of the law***

Presidents versus Prime Ministers

U.S. Presidents

- Often state government leaders, not members of Congress
- Gain support due to their “outsider” status
- Select cabinets from outside Congress

Prime Ministers

- Representative of the party in power
- Are often “insiders”
- Select cabinets from Parliament

Divided and Unified Government

- Presidents have **no guaranteed legislative majority**
- **Divided government**: one party controls the White House, another controls one or both chambers of Congress
- **Unified government**: the same party controls the White House and both chambers
- Since 1952: at least 60% of congressional elections have produced divided government

Energy in the Executive



Energy in the Executive

Hamilton, Federalist No. 70

> *Energy in the Executive is a leading character in the definition of good government. It is essential to the protection of the community against foreign attacks; it is not less essential to the steady administration of the laws; to the protection of property against those irregular and high-handed combinations which sometimes interrupt the ordinary course of justice; to the security of liberty against the enterprises and assaults of ambition, of faction, and of anarchy*

Hamilton's Ingredients of Energy

Federalist No. 70

- **Unity**: a single executive, not a council or plural executive
  - *"Decision, activity, secrecy, and despatch will generally characterize the proceedings of one man"*
- **Duration**: a term long enough to act with firmness
- **Adequate support**: a salary Congress cannot cut to pressure the president
- **Competent powers**: veto, command of the military, appointments

Selection and Re-eligibility

Federalist No. 68 and No. 72

Fed. 68: Electoral College

- Mix of popular choice and deliberative judgment by electors
- Guards against candidates with only *“talents for low intrigue, and the little arts of popularity”*

Fed. 72: Re-election

- Hamilton opposed term limits
- The chance to be re-elected gives presidents an incentive to perform well
- Barring re-election would waste experience in a crisis

The Power of Commander in Chief

- Extends beyond military control
- Includes management of the economy and the direction of foreign affairs
- Grows more in wartime, but applies in peacetime too

Article II, Section 2

Expressed Powers of the Presidency

- Commander in Chief
- Grant pardons
- Treaties; *approved by two-thirds of the Senate*
- Appoint ambassadors, judges, and other officers *with advice and consent of the Senate*
- *Veto legislation* (Article I, Section 7)
- State of the Union (Section 3)

Balance of Powers: Article II

Unilateral Authority

- Commander-in-chief
- Commission officers
- Grant pardons and reprieves (except impeachment)
- *Take Care Clause*

Shared with the Senate

- Make treaties
- Appoint ambassadors, judges, high officials

Shared with Congress

- Approve legislation

Article II

The *Take Care Clause*, Section 3

he shall take Care that the Laws be faithfully executed

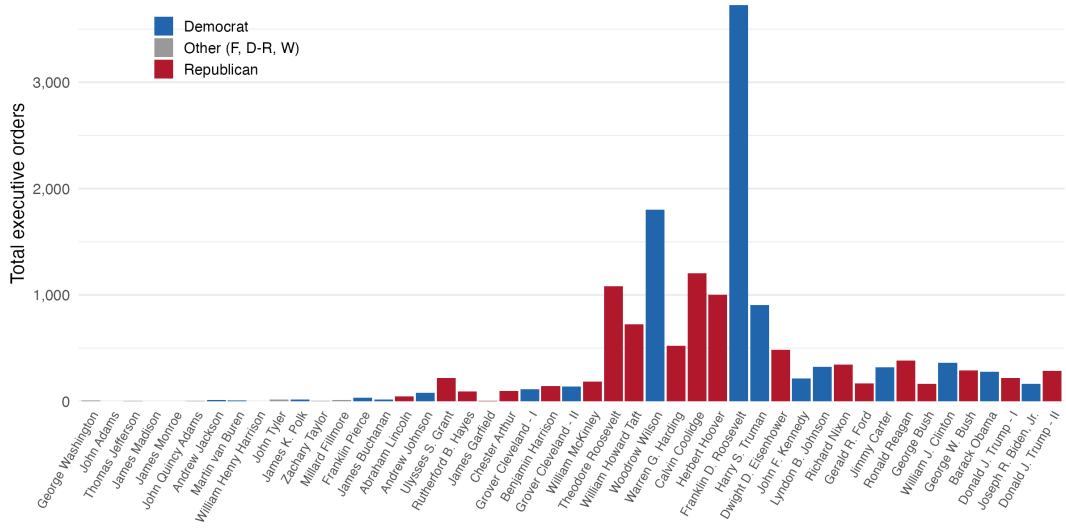
- Provides for the *implied powers* of the presidency
  - Military action
  - Domestic security
  - Executive agreements: Formal agreements negotiated with foreign governments
  - Executive privilege: The right to withhold certain communications from Congress or courts to protect confidential deliberations
  - *Executive orders*

Executive Orders

- **Executive order**: a directive to federal agencies on how to interpret or carry out existing law
  - Legally binding on the executive branch
  - Cannot make new law or contradict a statute
- **Easy to reverse**: the next president can revoke them with the stroke of a pen
  - Schedule F: created by Trump (2020), revoked by Biden, reinstated by Trump (2025)
- **Checked by the courts**
  - EO 14160 sought to end birthright citizenship; blocked by

Executive Orders

Total Orders by President



Source: The American Presidency Project, UC Santa Barbara (through September 20, 2026)

THE EVOLUTION OF THE PRESIDENCY

Founding Debates

- Delegates believed governing a large nation required a single president with significant power
- Some feared the presidency would become, in Edmund Randolph's words, the "foetus of monarchy"
- The Framers positioned the president's clearest constitutional authority over the military
- **Electoral College**: an indirect way of selecting the president
- **Term of office**: originally no term limits; presidents rarely sought more than two terms until FDR; the 22nd

The 12th Amendment (1804)

- **Original design**: each elector cast two votes; the top vote-getter became president and the runner-up became vice president
- The rise of parties broke the system
  - **1796**: rivals Adams (president) and Jefferson (vice president) were elected together
  - **1800**: Jefferson and his running mate Aaron Burr tied, and the House needed 36 ballots to choose Jefferson
- **The fix**: electors cast separate votes for president and vice president

From the First Presidents to the Modern Presidency

- **The first presidents**: prominent, but kept a modest office; distrusted political parties
- **The Jacksonians**: more contentious relationship with Congress; increased use of the veto power (Jackson vetoed 12 acts — more than all his predecessors combined)
- **The re-emergence of Congress**: Congress became the leading institution during a highly partisan era
- **The rise of the modern presidency**: initiates a policy agenda, oversees a robust staff, wields greater formal

FPG/Archive Photos/Getty Images

The first cabinet: Secretary of War Henry Knox, Secretary of State Thomas Jefferson, Attorney General Edmund Randolph, Secretary of the Treasury Alexander Hamilton, and President George Washington

HOW PRESIDENTS INFLUENCE POLICY

The Three Audiences

- **Other leaders**
- **Party leaders and activists**
- **The public**
  - Presidents communicate with the public to convert personal popularity into congressional support and to improve reelection chances

Additional Tools of Influence

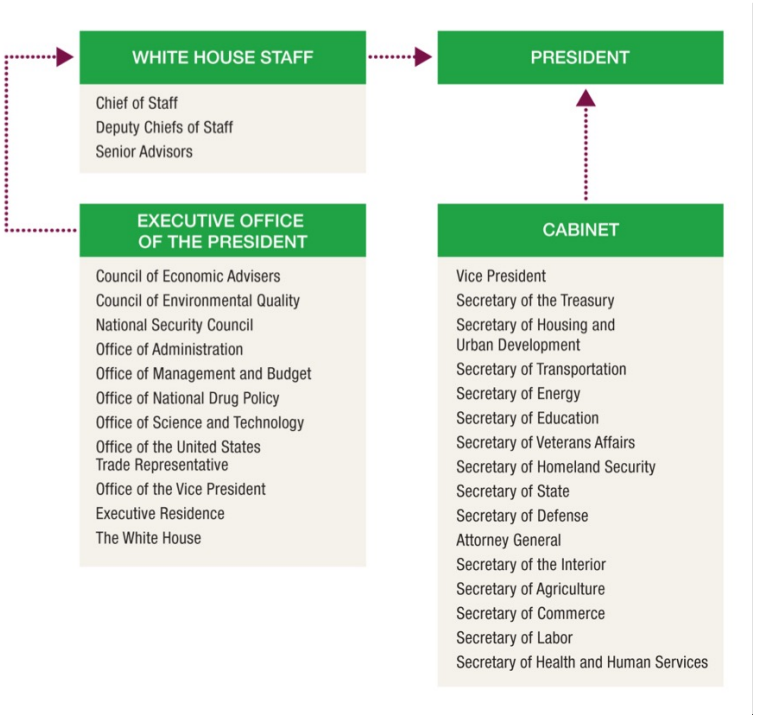
- **Veto message**: the president expresses to Congress the intention to veto legislation
- **Pocket veto**: a bill fails to become law because the president did not sign it within 10 days before Congress adjourns
- **Impoundment of funds**: refusal to spend congressionally appropriated funds
  - Impoundment was constrained by the *Impoundment Control Act* of 1974
- **Signing statements**: statements accompanying the

PRESIDENTIAL ORGANIZATION AND TRANSITION

Presidential Organization

- **The White House Office**: the president's closest personal staff
- **The Executive Office of the President** (established 1939): policy and management staff serving the presidency as an institution
- **The Cabinet**
- Independent agencies, commissions, and judgeships

Presidential Organization



Presidential Succession and Transition

- **The Succession Act of 1886**: designated the Secretary of State next in line after the vice president, followed by other cabinet officers by seniority
- **The 25th Amendment**: allows the vice president to serve as “acting president” if the president is disabled
- *Most* transitions of power have been peaceful: January 6, 2021

Impeachment

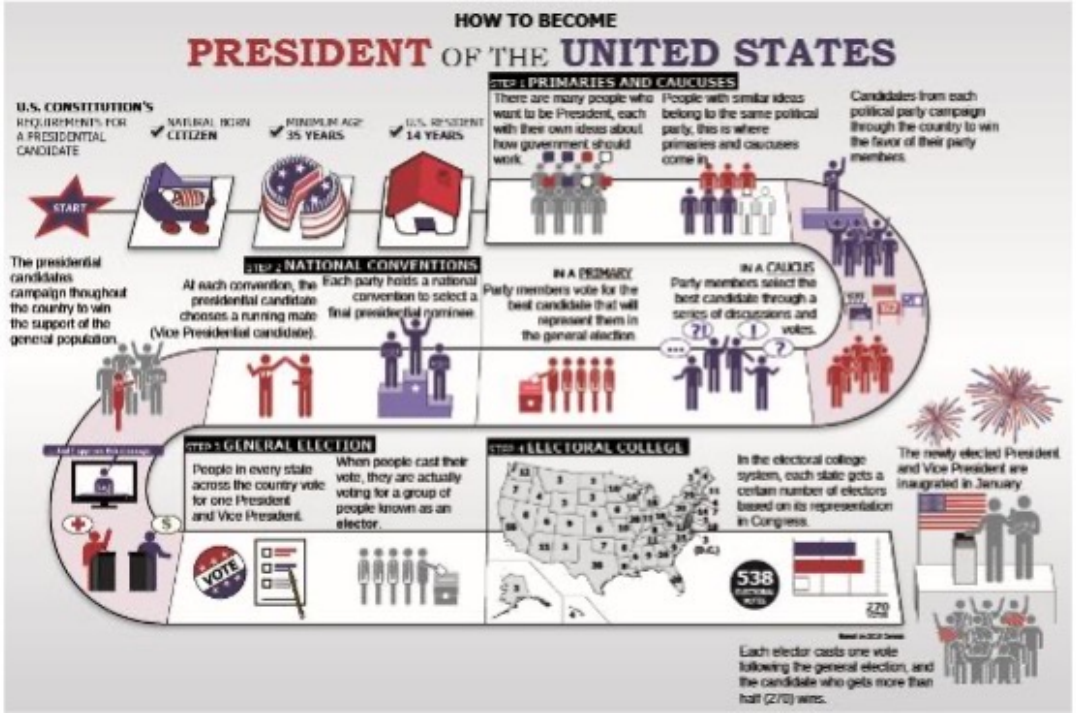
- Article II, Section 4: officers "*shall be removed from Office on Impeachment for, and Conviction of, Treason, Bribery, or other high Crimes and Misdemeanors*"
- Only three presidents have ever been impeached, for a total of four times: Andrew Johnson (1868), Bill Clinton (1998), and Donald Trump (2019 and 2021)
- January 2021: the first time in U.S. history a president was impeached twice
- What counts as a "high Crime and Misdemeanor"? Readings range from a technical crime, to whatever the

PRESIDENTIAL ELECTIONS

The Constitution

- Thirty-five years of age
- Natural-born citizen
- Fourteen years a US resident
- Elected to a four-year term
- Limited to two-terms
  - Twenty-Second Amendment (1951)
- Electoral College

The Process


HOW TO BECOME
PRESIDENT OF THE UNITED STATES
U.S. CONSTITUTION'S REQUIREMENTS FOR A PRESIDENTIAL CANDIDATE
✔ NATURAL BORN CITIZEN
✔ MINIMUM AGE 35 YEARS
✔ U.S. RESIDENT 14 YEARS
START
STEP 1: PRIMARIES AND CAUCUSES
There are many people who want to be President, each with their own ideas about how government should work.
People with similar ideas belong to the same political party, this is where primaries and caucuses come in.
Candidates from each political party campaign through the country to win the favor of their party members.
The presidential candidates campaign thoughout the country to win the support of the general population.
STEP 2: NATIONAL CONVENTIONS
At each convention, the presidential candidate chooses a running mate (Vice Presidential candidate).
Each party holds a national convention to select a final presidential nominee.
IN A PRIMARY
Party members vote for the best candidate that will represent them in the general election.
IN A CAUCUS
Party members select the best candidate through a series of discussions and votes.
STEP 3: GENERAL ELECTION
People in every state across the country vote for one President and Vice President.
When people cast their vote, they are actually voting for a group of people known as an elector.
VOTE
STEP 4: ELECTORAL COLLEGE
In the electoral college system, each state gets a certain number of electors based on its representation in Congress.
538
270
The newly elected President and Vice President are inaugrated in January
Each elector casts one vote following the general election, and the candidate who gets more than half (270) wins.

The Electoral College

Hamilton, Federalist No. 68

> *…the immediate election should be made by men most capable of analyzing the qualities adapted to the station, and acting under circumstances favorable to deliberation… A small number of persons, selected by their fellow-citizens from the general mass, will be most likely to possess the information and discernment requisite to such complicated investigations*

Why an Electoral College?

- The Convention rejected two alternatives
  - **Selection by Congress**: would make the president dependent on the legislature
  - **Direct popular vote**: a large nation, voters with little information about distant candidates, and slave states that would lose the weight of the Three-Fifths Compromise
- The compromise served two purposes
  1. A **check on the people**: guard against a candidate with "talents for low intrigue, and the little arts of popularity"
  2. A **balance between small and large states**: every state gets at least three electors

How the Electoral College Works

- **Electoral College**: the people chosen to cast each state's votes in a presidential election
- Each state gets one elector for each senator and representative
  - D.C. gets 3 (23rd Amendment, 1961)
  - **538** total electors; **270** needed to win
- 48 states use **winner-take-all**; Maine and Nebraska award electors by congressional district
- Electors meet in state capitals in December; Congress counts the votes in January

Not the Framers' Electoral College

- Political parties emerged within five years of ratification
- By the early 1800s, electors **pledged their votes in advance**: party loyalists, not independent judges
- **12th Amendment (1804)**: separate ballots for president and vice president
- *The election of a President of the United States is no longer that process which the Constitution contemplated* (1816)

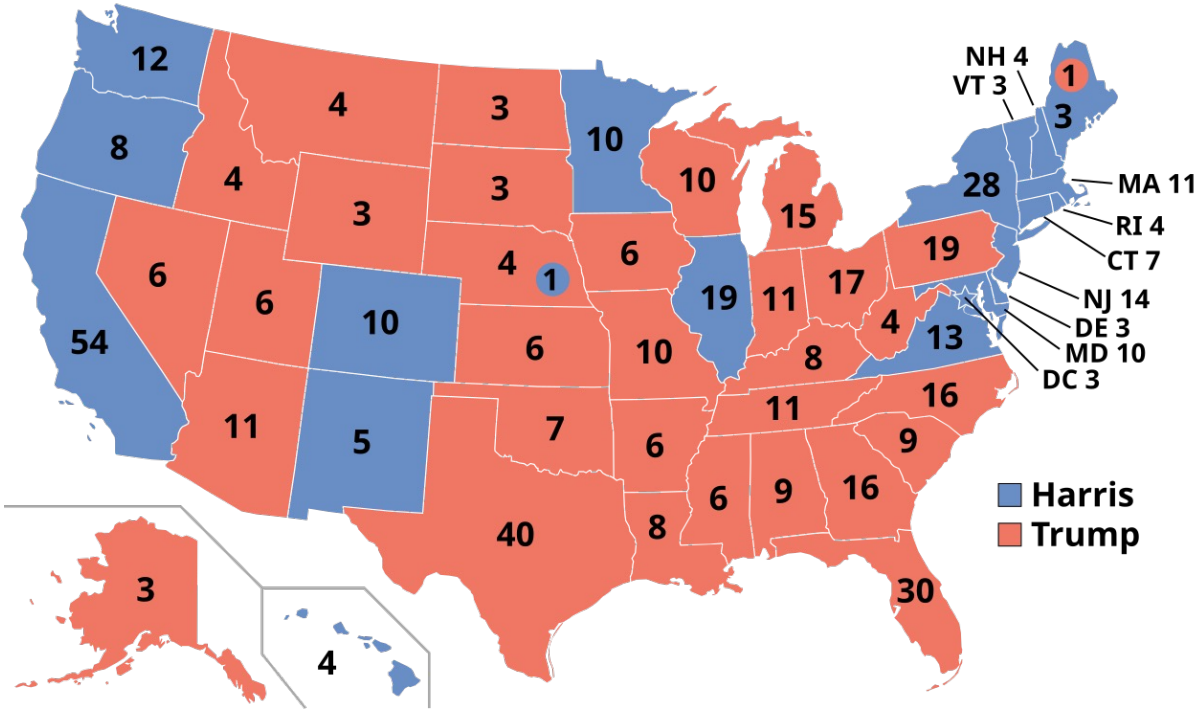
Choosing Electors: Three Methods

- The Constitution lets each **state legislature** decide how electors are chosen
  - **Legislative appointment**: the legislature picks the electors
  - **District method**: each district chooses one elector
  - **Winner-take-all**: the statewide winner receives every elector
- States switched methods for **partisan advantage**, sometimes days before an election
  - Massachusetts changed its method seven times in the first ten elections
- By **1836**, all but one state had adopted winner-take-all

The Electoral College Today

- **Short ballot** (after 1920): ballots list the candidates, not the electors — most voters never learn their electors' names
- Parties choose their own slates of electors
- **Faithless electors**: most states require electors to vote for their party's nominee
  - *Chiafalo v. Washington* (2020): states may enforce those pledges
- **Electoral Count Reform Act (2022)**: the vice president's role in counting is purely ministerial;

Presidential Election 2024



Electoral College vs. Popular Vote

LOSERS AND WINNERS

Presidents who lost the popular vote but won the Electoral College—and the presidency

YEAR	WINNER	RUNNER-UP
1876	 **Rutherford B. Hayes** Popular Vote: 4,033,497 Electoral Vote: 185	**Samuel Tilden** Popular Vote: 4,288,191 Electoral Vote: 184
1888	 **Benjamin Harrison** Popular Vote: 5,449,825 Electoral Vote: 233	**Grover Cleveland** Popular Vote: 5,539,118 Electoral Vote: 168
2000	 **George W. Bush** Popular Vote: 50,456,002 Electoral Vote: 271	**Al Gore** Popular Vote: 50,999,897 Electoral Vote: 266
2016	 **Donald Trump** Popular Vote: 62,984,828 Electoral Vote: 304	**Hillary Clinton** Popular Vote: 65,853,514 Electoral Vote: 227

SOURCES: LIBRARY OF CONGRESS, FEDERAL ELECTION COMMISSION

Winner-Take-All and Swing States

- Winner-take-all makes most states **safe** for one party
- Campaigns concentrate on a handful of **battleground states**
  - 2024: Arizona, Georgia, Michigan, Nevada, North Carolina, Pennsylvania, Wisconsin
- Voters in safe states see few candidate visits and little advertising
- Small states are overrepresented: a Wyoming elector represents about one-quarter as many people as a California elector

Debating the Electoral College

Defenders

- Preserves the federal character of the Union
- Forces candidates to build broad, geographically distributed coalitions
- Contains disputes and recounts within single states

Critics

- Presidents can lose the popular vote
- Votes count unequally across states
- Campaigns ignore safe states
- Robert Dahl: one of the Constitution's remaining **democratic deficiencies**

CHECKS ON PRESIDENTIAL POWER

Checks on the Presidency

- Congress can override vetoes (2/3 majority, both chambers)
- The Senate must confirm treaties (2/3) and major appointments (majority)
- Congress can impeach and remove the president
- Courts review executive actions for constitutional and statutory compliance

Trump v. United States (2024): Presidential Immunity

- Arose from Special Counsel Jack Smith's indictment of former President Trump over efforts to overturn the 2020 election and the January 6, 2021 attack on the Capitol
- Chief Justice Roberts's majority opinion established a **three-tier immunity framework** for former presidents

The Three Tiers of Immunity

- **Absolute immunity** for acts within the president's core constitutional powers — e.g., the pardon power, the veto, recognizing ambassadors, appointments
- **Presumptive immunity** for other official acts — prosecutors can only overcome this by showing prosecution poses no danger to executive functioning
- **No immunity** for unofficial (private) acts

Dissent: “A King Above the Law”?

- Justice Sotomayor: the ruling has no textual or historical basis — the framers gave members of Congress narrow immunity (the Speech or Debate Clause) but deliberately gave presidents none
- The **Impeachment Judgment Clause** (Article I, Section 3) presupposes a president *can* face criminal prosecution after impeachment
- Sotomayor warns the ruling’s broad view of “official” conduct makes “the President… a king above the law”
- Justice Jackson (separate dissent): the ruling

Immunity in a Broader Context

- Scholars group *Trump v. United States* with other 2020s Supreme Court decisions expanding presidential power at Congress's expense
- The end of *Chevron* deference
- *Trump v. Slaughter* (2026): overruled *Humphrey's Executor v. United States* (1935), constitutionalizing the **Unitary Executive Theory** — agency officials exercising "executive power" may be removed by the president at will

How Powerful Is the President Today?

- Presidents hold significant constitutional and political power, and are expected to lead the country and set the national policy agenda